



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

AUG 6 2001

DOT-E 12676
(FIRST REVISION)

EXPIRATION DATE: **June 30, 2003**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Environmental Management, Inc.
Guthrie, OK
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of a non-DOT specification full removable head steel salvage cylinder for overpacking and transportation in commerce of damaged or leaking cylinders of pressurized and non-pressurized hazardous materials. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.34(d) in that the salvage cylinder does not have a pressure relief device, and, 173.201, 173.202, 173.203, 173.302, and 173.304 in that the salvage cylinder is not listed as an authorized packaging therein.
5. BASIS: This exemption is based on the application of Environmental Management, Incorporated dated June 22, 2001, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials, except acetylene, which are authorized in DOT specification cylinders	Class 3, Division 2.1, 2.2, 2.3, or 6.1, as appropriate	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification full-removable head stainless steel salvage cylinder of welded construction, with provisions for securely positioning the damaged cylinder contained therein. Each salvage cylinder must be designed, constructed and stamped in accordance with Section VIII, Division I of the ASME Code. The salvage cylinder must conform with the MIDCO Fabricators, Inc. drawings on file with the Office of Hazardous Materials Exemptions and Approvals and with one of the two following design criteria:

Vertical Vessel:

Drawing	MC-18V24-01 Rev 1, dated October 6, 1997
Volume	27 gallons water capacity, nominal
Material	SA 106 Grade B
Outside diameter	18 inches, nominal
Length	24 inches, nominal
Design wall thickness	0.562 inch (nominal)
Design service pressure	200 psig (13.8 bar)
Test pressure	300 (20.7 bar)
Pressure relief device(s)	None
Welded attachments	One circular stand (12 inch pipe)

Skid Mounted Vessel:

Drawing	EMI-1860SMV-1, dated January 25, 2000
Volume	67 gallons water capacity, nominal
Material	SA 106 Grade B
Outside diameter	18 inches, nominal

Length 5 feet, nominal
Design wall thickness 0.562 inch (nominal)
Design service pressure 750 psig (51.7 bar)
Test pressure 975 (67.2 bar)
Pressure relief device(s) None
Welded attachments Two lifting lugs
Two skids (beams) held by four plates

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b. TESTING - Each salvage cylinder must be cleaned and purged after each use and must be visually inspected (internally and externally) and hydrostatically retested once every 2 years at a test pressure of at least 375 psig. The visual inspections must be performed in accordance with the Compressed Gas Association's Pamphlet C-6. The retest and inspection must be made by an employee that is familiar with the salvage cylinder and is trained and experienced in the use of the inspection and testing equipment. Records of retest must be made available to a DOT representative upon request.

c. OPERATIONAL CONTROLS -

(1) The prescribed salvage cylinders are authorized for use only with damaged or leaking DOT specification cylinders whose contents are limited in pressure and volume so that if totally discharged into the salvage cylinder, the pressure in the salvage cylinder will not exceed its design service at: 70°F for non-liquefied gases, and 130°F for liquefied gases.

(2) Each salvage cylinder must be cleaned and purged after each use.

8. SPECIAL PROVISIONS.

a. Drivers and persons who load, unload or transport these cylinders must have been trained in handling, loading and unloading the cylinder. The loaded salvage cylinder must be delivered to the consignor or consignee as soon as practicable.

b. Transportation is limited to motor vehicles owned or leased by holder of this exemption or its customers or vehicles owned or leased by contract carriers employed by the exemption holder.

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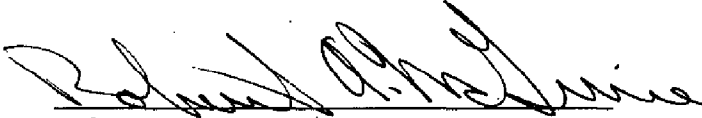
- c. Each salvage cylinder must be plainly marked on opposite sides near the middle, in letters at least 2 inches high on a contrasting background "DOT-E 12676" and "SALVAGE CYLINDER".
 - d. Each salvage cylinder must be labeled as prescribed for its lading.
 - e. Each salvage cylinder must be secured to the motor vehicle by a securement system that conforms with the requirements contained in 49 CFR §§ 393.100 to 393.106.
 - f. A person who is not a holder of this exemption who receives a packaging covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
 - g. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: cwf/am